

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Sedano v. City of Fresno et al.***
Superior Court Case No. 23CECG04664

Hearing Date: August 12, 2026 (Dept. 503)

Motion: By Cross-Defendants City of Fresno and Marco Flores for
Judgment on the Pleadings

Tentative Ruling:

To deny. (Code Civ. Proc., § 438.)

Explanation:

The City of Fresno and Marco Flores ("cross-defendants") move for judgment on the pleadings of the Cross-Complaint filed by Valeda Company, which seeks implied indemnity, comparative contribution, equitable indemnity, and declaratory relief. (See RJN Exh. A.)

The motion is denied for two reasons. First, it is brought pursuant to Code of Civil Procedure section 438, and therefore was to be filed prior to a pretrial conference order, or within 30 days of the date the action is initially set for trial, whichever is later. (Code Civ. Proc., § 438, subd. (e).) The motion clearly was not filed within these timeframes, with trial set to begin on August 24, 2026.

The motion must be denied on the merits as well. The motion is brought on the ground that Valeda did not comply with claim presentation requirements before filing the cross-complaint. (See Code Civ. Proc., §§ 911.2, 945.4.) An attack on the pleadings must be based solely on the factual allegations in the complaint, which are accepted as true, except when contradicted by exhibits to the complaint or documents of which the court has taken judicial notice. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 367.)

The moving papers correctly point out that "[i]f a plaintiff alleges compliance with the claims presentation requirement, but the public records do not reflect compliance, the governmental entity can request the court to take judicial notice under Evidence Code section 452, subdivision (c) that the entity's records do not show compliance." (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376.) This should be established by way of declaration by an employee of the public entity showing that a search was made for a claim, but the public entity's records show that no such claim exists. (See, e.g., *Fowler v. Howell* (1996) 42 Cal.App.4th 1746, 1752 ["A state employee familiar with the records of the Board of Control searched the records and so declared."]) Here however, all that is presented is a meet and confer declaration by cross-defendant's counsel stating that he informed Valeda's counsel that Valeda failed to submit a claim. (Chahal Decl., ¶¶ 1, 3, 5.) This obvious hearsay is not competent evidence of the fact upon which the motion depends. Accordingly, cross-defendants' request for judicial notice item 2 is denied, and the motion must be denied as well.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 8/10/2026 .
(Judge's initials) (Date)